

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TYQUAN SPANN,

Plaintiff,

Index No.

-against-

COMPLAINT

THE CITY OF NEW YORK, P.O. JASON L.
SMITH [SHIELD #16580], P.O. JOSEPH C.
SICARI [TAX REG. #959230], and JOHN
DOE AND JANE DOE #1-15 (the names
John and Jane Doe being fictitious, as the
true names are presently unknown),
Defendants.

-----X

Plaintiff, TYQUAN SPANN, by his attorney, The Law Offices of UGO UZOH, P.C.,
complaining of the defendants herein, The City of New York, P.O. Jason L. Smith
[Shield #16580], P.O. Joseph C. Sicari [Tax Reg. #959230], and John Doe and Jane Doe
#1-15 (collectively, “defendants”), respectfully alleges as follows:

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §1983, [and arising under the law and statutes of the City and State of New York].

COMPLIANCE WITH N.Y. GEN. MUN. LAW REQUIREMENTS

2. Plaintiff timely made and served a notice of claim upon the defendants in compliance with N.Y. Gen. Mun. Law § 50-e.
3. At least thirty days have elapsed since the service of aforesaid notice of claim and adjustment or payment thereof has been neglected or refused.
4. This action is commenced within one year and ninety days after the happening of the event(s) upon which the claim(s) is based.

THE PARTIES

5. Plaintiff is and was at all times material herein a resident of Brooklyn, County of Kings, City and State of New York.
6. Defendant City of New York ("City") is a municipal corporation duly organized and existing under the laws of the State of New York.
7. The City of New York Police Department ("NYPD") is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City.
8. Defendant P.O. Jason L. Smith [Shield #16580] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
9. Defendant P.O. Joseph C. Sicari [Tax Reg. #959230] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
10. Defendants John Doe and Jane Doe #1-15 were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.
11. Defendants Smith, Sicari, and John Doe and Jane #1-15 are collectively referred to herein as "defendant officers".
12. At all times material to this Complaint, the defendant officers acted toward plaintiff under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

The July 31, 2019, Incident

13. On or about July 31, 2019, at approximately 5:30 p.m., defendant officers, acting in concert, arrested plaintiff without cause at or within the vicinity of 82 Amboy Street, Brooklyn, New York, and charged plaintiff with PL 265.03(1)(b) 'Criminal possession of a weapon in the second degree', PL 265.02(5)(ii) 'Criminal possession of a weapon in the third degree', PL 120.25 'Reckless endangerment in the first degree', PL 265.01(1) 'Criminal

possession of a weapon in the fourth degree', and PL 221.05 'Unlawful possession of marihuana in the second degree'.

14. Plaintiff, however, was not in possession of any weapon and/or marihuana, did not engage in any conduct which created any risk of physical injury to any person, and did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
15. Prior to the arrest, plaintiff and his friend, Jackson, had visited their mutual friend, Shaquala, at the aforesaid address.
16. After the visit, plaintiff and his friend left the location to return home.
17. As soon as plaintiff and his friend stepped out of the location to return home, they were stopped on the driveway by defendant officers with their guns drawn.
18. Defendant officers immediately directed the plaintiff to get down on the floor.
19. Plaintiff promptly laid down on the floor as he was directed.
20. Upon approaching the plaintiff, defendant officers kicked him and held him down with their feet on his head, pinning him face down to the floor.
21. Defendant officers proceeded to tightly handcuff the plaintiff with his hands placed behind his back causing the plaintiff to sustain cuts and bruises on his wrists.
22. Even though the plaintiff was already handcuffed with his face down on the floor, defendant officers still forcibly held the plaintiff down with their knee(s) placed at the back of his head pinning him face down to the floor.
23. Defendant officers continued their physical abuse of the plaintiff by hitting, kicking, striking, and beating him causing the plaintiff to sustain serious physical injuries on various parts of his body.
24. Defendant officers refused the plaintiff's entreaties for medical treatment and care for his injuries.
25. Defendant officers also subjected the plaintiff to an illegal search.
26. Defendant officers' illegal and warrantless search of the plaintiff did not yield any contraband.

27. Notwithstanding the above, defendant officers eventually pushed the plaintiff into their police vehicle and transported the plaintiff to NYPD-73rd Precinct for arrest processing.
28. Plaintiff repeatedly inquired as to the reason for his arrest.
29. Defendant officers ignored the plaintiff's inquiries.
30. While at the precinct, defendant officers further subjected the plaintiff to an illegal and unlawful search.
31. Defendant officers did not recover any contraband from their unlawful search of the plaintiff.
32. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiff saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
33. After detaining the plaintiff at the precinct for a lengthy period of time, plaintiff was transported to the Central Booking.
34. While plaintiff was awaiting arraignment, defendant officers met with prosecutors employed by Kings County District Attorney's Office.
35. During this meeting, defendant officers falsely stated to the prosecutors, among other things, that the plaintiff was in possession of a weapon and/or marihuana and engaged in conduct which created risk of physical injury to another person or persons.
36. Based on the false testimony of defendant officers, the prosecutors initiated criminal actions against the plaintiff.
37. The prosecutors subsequently conducted an independent investigation and concluded that there was no evidence of any crime committed by the plaintiff.
38. As a result, the prosecutors declined to prosecute the plaintiff.
39. After detaining the plaintiff for a lengthy period of time, defendant officers summarily released the plaintiff from his unlawful detention.

40. However, defendant officers still continue to harass the plaintiff and falsely announce to his relatives and acquaintances that he was in possession of a weapon and/or stolen property.
41. Defendant officers would often stop, frisk, and detain the plaintiff whenever they run into him, and would call out the plaintiff on the rare occasion when they do not stop or detain him.

The August 25, 2019, Incident

42. On or about August 25, 2019, at approximately 3:00 a.m., defendant officers, acting in concert, arrested plaintiff without cause at or close to the corner of Mother Gaston Boulevard and Sutter Avenue, Brooklyn, New York, and, upon information and belief, charged plaintiff with NYC Admin. Code 10-125(b) 'Consumption of alcohol on streets'.
43. Plaintiff, however, did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
44. Prior to the arrest, plaintiff was attending a block party at the aforesaid location when he was approached by defendant officers.
45. Upon approach, defendant officers forcibly kicked and tripped up the plaintiff causing him to fall down and sustain serious physical injuries on various parts of his body.
46. Defendant officers proceeded to tightly handcuff the plaintiff with his hands placed behind his back causing the plaintiff to sustain cuts and bruises on his wrists.
47. Defendant officers continued their physical abuse of the plaintiff by hitting, kicking, striking, and beating him causing the plaintiff to sustain serious physical injuries on various parts of his body.
48. Defendant officers refused the plaintiff's entreaties for medical treatment and care for his injuries.
49. Defendant officers also subjected the plaintiff to an illegal search.

50. Defendant officers' illegal and warrantless search of the plaintiff did not yield any contraband.
51. Notwithstanding the above, defendant officers eventually pushed the plaintiff into their police vehicle and transported the plaintiff to NYPD-73rd Precinct for arrest processing.
52. Plaintiff repeatedly inquired as to the reason for his arrest.
53. Defendant officers ignored the plaintiff's inquiries.
54. While at the precinct, defendant officers further subjected the plaintiff to an illegal and unlawful search.
55. Defendant officers did not recover any contraband from their unlawful search of the plaintiff.
56. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiff saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
57. After detaining the plaintiff at the precinct for a lengthy period of time, defendant officers caused a legal process to issue against the plaintiff requiring the plaintiff to appear in court on November 9, 2019 to defend the false charge(s) levied against him by defendants.
58. Plaintiff subsequently appeared in the criminal court as he was directed but was advised that the prosecutors had declined to prosecute him.
59. Each and every officer who responded to and/or was present at the location of the arrest/assault and at the precinct and/or station house knew and was fully aware that the plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
60. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiff.
61. As a result of the aforesaid actions by defendants, plaintiff suffered and continues to suffer emotional distress, fear, embarrassment, humiliation,

shock, discomfort, loss of liberty, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

62. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 61 of this complaint as though fully set forth herein.
63. Defendant officers arrested the plaintiff without probable cause or reasonable grounds.
64. The conduct of defendant officers, as described herein, amounted to false arrest.
65. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
66. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

67. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 66 of this complaint as though fully set forth herein.
68. Defendant officers purposely or knowingly used unreasonable force against the plaintiff.
69. There was no legitimate governmental interest in defendant officers' unnecessary and wanton infliction of pain and suffering upon the plaintiff.
70. The conduct of defendant officers, as described herein, amounted to excessive use of force.
71. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

72. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION: FABRICATION OF EVIDENCE - against defendant officers

73. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 72 of this complaint as though fully set forth herein.
74. Defendant officers manufactured evidence of criminality against the plaintiff which the prosecutors relied upon to initiate criminal actions against the plaintiff.
75. The conduct of defendant officers, as described herein, amounted to fabrication of evidence and denial of due process rights.
76. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
77. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION: UNLAWFUL STOP AND FRISK AND UNREASONABLE SEARCH & SEIZURE - against defendant officers

78. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 77 of this complaint as though fully set forth herein.
79. Defendant officers routinely harass the plaintiff and would often stop, frisk, search, and detain the plaintiff whenever they run into him.
80. Defendant officers unlawfully grabbed the plaintiff, forcibly threw him down, tightly handcuffed him, held and pinned him face down, frisked and searched him on multiple occasions, and restrained plaintiff's freedom to walk away.
81. Defendant officers did not have any reasonable grounds to believe that the plaintiff was engaged (or had planned to engage) in any criminal activity.

82. Defendant officers by their conduct as described herein subjected plaintiff to unlawful stop & frisk and unreasonable search & seizure.
83. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
84. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

85. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 84 of this complaint as though fully set forth herein.
86. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
87. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
88. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
89. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: FAILURE TO TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against defendant City

90. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 89 of this complaint as though fully set forth herein.

91. Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when probable cause exists for such arrest.
92. Defendant City of New York, acting through aforesaid NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in robbery, narcotics, drugs, guns and/or other illicit activities.
93. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
94. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the court observed that defendant City had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.
95. In *Ligon v. City of New York*, 925 F. Supp. 2d 478 (S.D.N.Y. 2013), the court determined that defendant City, acting through the NYPD, engages in unlawful stop and frisk. *See also Davis v. City of New York*, 959 F. Supp. 2d 324 (S.D.N.Y. 2013) (same).
96. In *Jones v. City of New York*, 603 Fed. Appx. 13 (2d Cir. 2015), Police Officer David Rodriguez arrested the plaintiff in that matter, Javier Jones, merely because he was allegedly informed that Mr. Jones was in the

company of another individual named Frantz Machon who did allegedly display a weapon.

97. Officer Rodriguez was questioned at his deposition as to whether it is NYPD's policy to charge all members of a group with criminal possession of a weapon when only one group member is alleged to have possessed a firearm.
98. Officer Rodriguez, as the United States Court of Appeals for the Second Circuit observed, testified that although NYPD "does not have an official policy of charging all members of a group with criminal possession of a weapon when only one group member is alleged to have possessed a firearm, [] 'That is what we do.'" *Jones*, 603 Fed. Appx. at 15.
99. Officer Rodriguez did further elaborate that "It is like an accomplice to the person with the firearm[]" and that "the normal procedure is when you have a situation like this, everyone gets charged with the firearm because we are going off on what the victim said . . . if the victim said that [Machon] had a firearm, that is going to be the charge for everyone."
100. As the plaintiff in *Jones* successfully argued before the Second Circuit, Officer Rodriguez's testimony shows that he "is unaware that he does not have probable cause to arrest a mere bystander[]" which shows that "he has not been trained on this issue by the City [and NYPD]."
101. Here, as was true in *Jones*, defendant City has failed to train defendant officers and has failed to instill in them the fact that they lack probable cause to arrest an individual such as the plaintiff who was not engaged in any wrongful conduct and no evidence connected him to any crime or offense.
102. Defendant City has settled numerous lawsuits against several officers assigned to the NYPD alleging, among other things, that the officers used excessive force, fabricated evidence and falsely arrested the plaintiffs without probable cause. *See, e.g., Eric Davis v. City of New York* (16 CV 385) (improper seizure and excessive force); *Jimmy Wilson v. City of New York* (15 CV 6326) (improper seizure and excessive force); *Crystal Whitfield v. City of New York* (14 CV 6085) (improper seizure and excessive force);

Tyrone Jackson v. City of New York (13 CV 3589) (false/fabricated identification); *Terri Bradshaw v. City of New York* (13 CV 2991) (improper seizure and excessive force); *Ramel King v. City of New York* (12 CV 4322) (improper seizure); *Javier Jones v. City of New York* (12 CV 3658) (false/fabricated identification); *Anthony Holley v. City of New York* (12 CV 2410) (false/fabricated identification and excessive force); *Ian Felmine v. City of New York* (09 CV 3768) (false/fabricated identification and excessive force); *Jawanza Lewis v. City of New York* (08 CV 2435) (improper seizure and excessive force); *Nicholls Olwyn v. City of New York* (08 CV 2098) (false/fabricated identification).

103. Aside from the cases which have already been settled, there are numerous lawsuits pending against several officers assigned to the NYPD alleging, among other things, that the officers used excessive force, fabricated evidence and falsely arrested the plaintiffs without probable cause. *See, e.g., Eddie Holley v. City of New York* (18 CV 6487) (improper seizure and excessive force); *Warren Monk v. City of New York* (18 CV 6458) (improper seizure); *Brandon Gutierrez v. City of New York* (18 CV 3621) (improper seizure, excessive force, and false/fabricated identification); *Jeffrey Demosthene v. City of New York* (18 CV 1358) (improper seizure and false/fabricated identification); *Kroutchev Demosthene v. City of New York* (14 CV 816) (excessive force and false/fabricated identification); *Marlon Sealey v. City of New York* (Index No. 514227/2017) (improper seizure); *Bobby Lopez v. City of New York* (Index No. 151467/2017) (improper seizure and excessive force); *Sheldon St. Rose v. City of New York* (Index No. 506929/2014) (improper seizure and excessive force); *Khalif Washington v. City of New York* (Index No. 702137/2013) (improper seizure and excessive force); *Reginald Simms v. City of New York* (Index No. 27057/2010) (improper seizure).
104. Despite the numerous complaints of civil rights violations described hereinabove, there has been no meaningful attempt on the part of defendant City to forestall further incidents and/or even to investigate claims that police

routinely fabricate identification evidence, arrest innocent citizens without probable cause, and use excessive force in the arrest of innocent citizens.

105. As a result of defendant City's failure to properly train, supervise or discipline its police officers, defendant officers unlawfully arrested the plaintiff, incarcerated him, and abused and/or assaulted the plaintiff.

106. Defendant City maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiff's injuries as described herein.

107. The actions of defendants, acting under color of State law, deprived plaintiff of his due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, the excessive use of force and the right to due process.

108. By these actions, defendants have deprived plaintiff of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendants

109. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 108 of this complaint as though fully set forth herein.

110. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiff without probable cause or reasonable suspicion, and harassing and assaulting him and depriving him of due process and equal protection of laws, defendants deprived plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process),

Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.

111. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
112. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.
113. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiff's state constitutional rights.

EIGHTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) -
against defendants

114. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 113 of this complaint as though fully set forth herein.
115. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment.
116. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

NINTH CAUSE OF ACTION: TORTS (ASSAULT AND BATTERY) - against defendants

117. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 116 of this complaint as though fully set forth herein.
118. By reason of and as a consequence of the conduct of defendant officers, plaintiff sustained injuries with the accompanying pain.
119. The conduct of the defendants, as described herein, amounted to assault and battery.
120. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TENTH CAUSE OF ACTION: TORTS (UNREASONABLE SEARCH AND SEIZURE) - against defendants

121. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 120 of this complaint as though fully set forth herein.
122. The conduct of the defendants, as described herein, amounted to degrading, humiliating and unreasonable search and seizure, and unreasonable detention.
123. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

ELEVENTH CAUSE OF ACTION: TORTS (NEGLIGENCE AND/OR BREACH OF SPECIAL DUTY OR RELATIONSHIP) - against defendants

124. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 123 of this complaint as though fully set forth herein.
125. Defendants failed to properly care, supervise and protect the plaintiff, failed to ensure the plaintiff's health and safety, and were careless and negligent in their treatment of the plaintiff.
126. The conduct of the defendants, as described herein, amounted to negligence and breach of special duty or relationship.

127. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TWELFTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendants

128. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 127 of this complaint as though fully set forth herein.
129. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiff.
130. Plaintiff's emotional distress has damaged his personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention and imprisonment by defendants.
131. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRTEENTH CAUSE OF ACTION: NEGLIGENT HIRING AND RETENTION OF EMPLOYMENT SERVICES - against defendant City

132. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 131 of this complaint as though fully set forth herein.
133. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff to prevent the physical and mental abuse sustained by plaintiff.
134. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiff or to those in a like situation would probably result from such conduct described herein.

135. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
136. Upon information and belief, defendant City's negligence in hiring and retaining defendant officers proximately caused plaintiff's injuries.

DAMAGES

137. That by reason of the foregoing, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff respectfully prays judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York
November 29, 2019

UGO UZOH, P.C.

By: 
Ugochukwu Uzoh
Attorney for the Plaintiff
56 Willoughby Street, Third Floor
Brooklyn, N.Y. 11201
Tel. No: (718) 874-6045
Fax No: (718) 576-2685
Email: u.ugochukwu@yahoo.com

STATE OF NEW YORK
COUNTY OF KINGS

SS:

TYQUAN SPANN being duly sworn deposes and says that he is the plaintiff in foregoing ~~Amended~~ Summons and Verified Amended Complaint. That he has read the foregoing ~~Amended~~ Summons and Verified ~~Amended~~ Complaint and knows the contents thereof, the same is true of his own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, he believes them to be true.

Tyquan Spann
Tyquan Spann

SWORN TO BEFORE ME THIS 29TH DAY

OF NOVEMBER 2019

[Signature]
NOTARY PUBLIC

UGOCHUKWU UZOH
Notary Public - State of New York
No. 02UZ6181083
Qualified in Kings County
My Commission Expires Jan. 22, 2020

**THE SUPREME COURT OF THE
STATE OF NEW YORK, KINGS COUNTY**

AT AN IAS PART ____ OF THE SUPREME COURT
OF THE STATE OF NEW YORK, KINGS COUNTY,
BOROUGH OF BROOKLYN, CITY OF NEW YORK
ON THE ____ DAY OF _____, 20____

TYQUAN SPANN,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JASON L.
SMITH [SHIELD #16580], P.O. JOSEPH C.
SICARI [TAX REG. #959230], and JOHN
DOE AND JANE DOE #1-15 (the names
John and Jane Doe being fictitious, as the
true names are presently unknown),
Defendants.

SUMMONS

&

VERIFIED COMPLAINT

CERTIFICATION: I hereby certify that all papers that I
have served, filed or submitted to the court in the within
action are not frivolous pursuant to Sec. 130-1.1a of the
Rules of the Chief Administrator (22NYCRR)


Ugo Uzoh

11/29/2019

Dated

Ugo Uzoh, P.C.

Attorneys for plaintiff
Office & Post Office Address

**56 WILLOUGHBY STREET, THIRD FLOOR
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